

# SECTION J – ATTACHMENT 2

## ORDERING INSTRUCTIONS

SECTION J FA8809-26-R-B002  
ATTACHMENT 2

### **ORDERING INSTRUCTION**

### **FOR**

**Hybrid Architecture and Development for Experimental Systems (HADES)**

Contractor: TBA

Solicitation Number: FA8809-26-R-B002

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ATTACHMENT 2

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(1) This Attachment 2 outlines ordering procedures for issuing task orders against contract HADES Solicitation # FA8809-26-R-B002, utilizing CLINs 0001 thru 0008 as appropriate. Task orders will be issued by a Contracting Officer in accordance with Federal Acquisition Regulation (FAR) 52.216-18. The contractor is not authorized to commence performance prior to issuance of the task order by the Contracting Officer. Costs incurred prior to authorization will not be allowable.

(2) If the Government does not issue a task order for the Core Sustainment and Management for an ordering period, all subsequent ordering periods are null and void. If any option period for Core Sustainment and Management is not exercised, then all future option periods for Core Sustainment and Management are null and void. Task orders for customer support may only be issued if a Core Sustainment and Management task order for the same ordering period has also been issued. A task order for customer support may cross Core Sustainment and Management ordering periods without a Core Sustainment and Management task order in place for the whole customer effort period of performance.

(3) When a Government need is identified, the Contracting Officer will issue a task order letter Request for Proposal (RFP) which will include a Performance Work Statement (PWS) outlining the requirements and scope of the effort to be accomplished, any special terms and conditions, and the requested proposal response date. The Government will provide the contractor with task order specific work activities. Each mission will have its own task order to encompass the engineering, development, integration and sustainment phases, as appropriate. Each phase within the task order may have its own milestones and objectives that must be met and coordinated with the Government prior to proceeding to the next phase. Each approved/awarded task order will identify: the specific tasks from the basic Performance Work Statement (PWS) attached to the basic contract, any additional lower-level tasks or task clarification, the deliverables, applicable guidance, performance requirements, objectives and thresholds, the period of performance, schedule and other direct costs.

(4) The contractor shall (i) submit to the Contracting Officer a brief technical description describing how the work will be performed; (ii) submit a cost proposal including the contractor's basis of estimate that includes labor hour estimates by labor category and Work Breakdown Structure (WBS) elements. (iii) submit a cost model in excel format broken out by CLIN by offeror's accounting year, identifying: labor categories; number of hours within each category required for the performance of the proposed work; and any required travel or materials necessary for performance; (iv) identify and provide rationale for all non-labor cost elements required for performance; (v) IAW FAR 45.102 –Government Property Policy, identify and provide rationale for any Government property necessary to perform contract; (vi) propose an award fee milestone schedule to include event number, description, accomplishment expected, method of Government verification and award fee value; and (vii) provide an update and/or appended Program Management Plan, IMS, and any other overarching contractually binding plan affected by the task order, in accordance with the affected Contract Data Requirements List (CDRL) requirements. Costs will be proposed using the burdened direct labor rates table and Award Fee identified in Section J Attachment 8 of the basic contract. Direct charging of the contractor's proposal

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preparation for new Task Orders will not be authorized. Direct charging for modifications to existing Task Orders will not be authorized unless the following exception applies and the direct charging is approved by the appropriate Government designee: (i) changes directed by the Government under the Changes Clause; (ii) VECs; (iii) ECPs; (iv) follow-on procurements; (v) new requirements added to existing contracts; and (vi) definitization of unpriced contractual actions. If proposal preparation is authorized, costs shall not be subject to award fee.

(5) IAW FAR 52.216-18 Ordering and Attachment TBD –Rates, each task order issued under this contract that contains a CPAF CLIN(s) will specify the amount of that task orders award fee pool contribution value for each award fee period during the performance life of the task order. Each task order issued under this contract that contains a CPAF CLIN(s) shall cite the IDIQ contract Award Fee Plan; and will specify the award fee for the task order that will be executed in accordance with the contract Award Fee Plan. The objective of the award fee for this contract is to incentivize the Contractor's performance for the HADES task orders and for the mission as a whole. Performance of task orders issued subsequent to the Core Sustainment and Management task order will be inter-reliant with the Core Sustainment and Management task order. Accordingly, the award fee activities for all CPAF CLINs under the IDIQ contract will be executed via an administrative CLIN under the Core Sustainment and Management task order. Future orders (other than the Core Sustainment and Management task order) will not contain a CLIN for the potential award fee payment. All obligations and payments of earned award fee will be made via obligation of funds to the award fee informational CLIN in the Core Sustainment and Management task order following the Field Determining Official decision.

(6) Unless otherwise indicated in the letter RFP, the contractor's proposal is due thirty (30) working days from receipt of the RFP.

(7) Upon receipt of the contractor's proposal, the Contracting Officer and team will analyze the proposal. The Government team will evaluate the technical and cost proposal. If warranted, fact-finding sessions may be held to discuss elements of the proposal. Once the proposal evaluation is complete, if the Contracting Officer finds the proposal acceptable as offered, he or she will issue a Task Order directing the contractor to commence performance. If the proposal is not fully acceptable as offered, negotiations shall be conducted. In the event issues pertaining to a proposed work cannot be resolved to the satisfaction of the Contracting Officer, the Contracting Officer reserves the right to withdraw and cancel the proposed work. In such event, the contractor shall be notified, via letter, of the Contracting Officer's decision. This decision shall be final and conclusive and shall not be subject to the Disputes clause or the Contract Disputes Act.